



JAMAICA CONSTABULARY FORCE
Early Intervention System Policy and Standard Operating Procedures

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1.0 Introduction

It is accepted globally that the job of police officers, by its very nature, is a challenging one. In addition, police officers should manage their personal lives to be able to function in an effective manner. The JCF, in recognition of these challenges, have in its armoury several regulations, policies and guidelines that serve to guide officers in conducting their responsibilities ethically and with integrity. The Early Intervention System (EIS) is developed to serve as a tool to help members assess their behaviours and actions, get the appropriate support needed, so that their actions remain in conformity with the mandate of the force.

The EIS is conceptualized as an intervention tool for law enforcement managers to ensure that the force policies, laws and regulations are adhered to by its members. It also serves as a tool to ensure that personnel are given the requisite corrective support that should enable them to remain consistent with actions that reflect the standards and ethics of the force.

How should EIS benefit the concerned officers

Help members to be aware of their blind-spot/weaknesses to:

- mitigate professional risks – personal integrity, image, character, credibility;
- minimize liability – civil suit, criminal actions, internal tribunal; and
- encourage professional conduct – sound moral & ethical conduct, i.e. courtesy, respect, fairness, honesty, keeping records of action.

Provide incentives through:

- professional development - training, mentoring, coaching, counselling; and
- placement in an area where he or she is best suited – job rotation, job enrichment, etc.

How should EIS benefit Managers/Supervisors

- presents an intrusive system of approaching concerned members without attracting criticism of victimization;
- build capacity and encourage managers/supervisors to counsel and guide employee;
- help concerned officers to deal with their weaknesses which should improve the manager's image and influence; and
- enable managers to evidence steps taken to help a concerned member.

Ways in which the EIS should benefit the JCF

- establish a mechanism to clearly identify members who exhibit potentially problematic behaviour;
- identify and help members before their behaviour become problematic;
- find patterns of misconduct;
- reinforce and support supervisory accountability;

- assist in identifying policy failures/gaps for appropriate actions; and
- build, have and maintain community trust.

2.0 Purpose

The purpose of the EIS is to serve as a guiding framework to identify actions of personnel that are not in keeping with the professional requirements of the force, on or off duty. The EIS should:

- Identify and assess behaviour exhibited by members that is in breach of the code of conduct, regulations, policies, guidelines and procedures of the force, and which may lead to unlawful actions.
- Aid in the intervention and correction of behaviours.
- Provide operational and developmental support to members so that they can consistently cope with their personal and professional challenges.
- Aid in ensuring that members understand and are reminded of their responsibilities as police officers.
- Improve members' awareness, accountability and professionalism.
- Aid in the continuity of the JCF's transformation process to build quality officers to satisfy the demands of modern policing requirements.
- Aid in the development of systems that should improve members' resilience and enhance institutional growth.
- Aid in the enhancement of the JCF's image by ensuring that members are accountable, transparent and conduct duties with integrity.

3.0 Scope

This policy and SOPs apply to all sworn and unsworn members of the JCF and its' auxiliary. It covers the identification, intervention and diversion of members displaying abnormal behaviour and the measures available to resolve these behaviours. It also imposes responsibilities on key personnel in the identification, intervention and diversion process as well as creating an environment that discourages corruption.

4.0 Policy Statements

The JCF is committed to the prevention of corruption or other undesirable behaviours and performance or misconduct among its members. Against this background, it is the policy that:

- corruption or other undesirable behaviours and performance or misconduct from members are unacceptable and should not be tolerated;

- 4.2 all members are entitled to work in an environment free from corruption or other undesirable behaviours and performance or misconduct;
- 4.3 persons making reports against a member in relation to corruption or other undesirable behaviours, performance or misconduct should not be victimized;
- 4.4 all reported allegations of corruption or other undesirable behaviours and performance or misconduct should be expeditiously investigated and appropriate actions instituted in accordance with the disciplinary framework of the Force.
- 4.5 information relating to the complainant or circumstances of the complaint(s) should be disclosed only for the purpose of investigation and disciplinary action; and
- 4.6 disciplinary measures should be instituted against any member where it has been proven that the member has committed any act of corruption or other undesirable behaviours, performance or misconduct.

5.0 Abbreviations and Acronyms

EIS	Early Intervention System
IPOB	Inspectorate and Professional Standards Oversight Bureau
JCF	Jamaica Constabulary Force
SOP	Standard Operating Procedures

6.0 Definitions

For the purpose of this policy and SOPs the following definitions are adopted:

6.1 Complainant

Means any member of the JCF or the public reporting a case of corruption or other undesirable behaviour or performance, or misconduct committed by a member of the JCF or its auxiliary

6.2 Early Intervention System (EIS)

The Early Intervention System (EIS) is a structured approach to identifying, intervening and aiding members to get remedial help in cases where they show signs of behavioural instability or have attempted to, or may have breached the code of conduct, procedures, policies and guidelines of the JCF.

6.3 Formal Intervention

The second level of the intervention procedure which is initiated upon special recommendation from the supervisor to the Commanding Officer, who should make an assessment to decide whether or not a matter should be placed before a formal tribunal

6.4 Indicator

A sign that can trigger the intervention process of an early intervention programme.

6.5 Informal Intervention

First level of the intervention procedure where supervisors are responsible for intervening and dealing with any report of antisocial behavior, or other act of unprofessional conduct on the part of a member

6.6 Member

All sworn members or civilians, whether employed or contracted to the JCF

7.0 Responsibilities

The following summarizes key responsibilities:

7.1 Inspectorate and Professional Standards Oversight Bureau (IPROB) is responsible for:

- 7.1.1 maintaining a record of all reports of corruption and other undesirable behaviour, performance and misconduct;
- 7.1.2 maintaining a JFS's Early Intervention System Register; and
- 7.1.3 submitting quarterly reports on each case to the Deputy Commissioner of Police, Administration and Support Services Portfolio, Medical Services Branch and Chaplaincy Branch.

7.2 Commanding Officers should:

- 7.2.1 manage the EIS within their respective divisions and maintain records of every intervention of members;
- 7.2.2 submit monthly returns on EIS to IPROB via Area and Branch Officers;
- 7.2.3 ensure that the recommended intervention is applied and appropriately entered into the EIS Register where an EIS Committee hearing has been conducted;
- 7.2.4 make an assessment and decide whether or not a matter should be placed before a formal tribunal;
- 7.2.5 utilize the available expertise to address issues that may be faced by a member; These include:
 - a. Medical Services Branch (Chaplain, Psychologist, Psychiatrist, Peer Counsellor, appropriate referrals).
 - b. Area/ Division (Territorial Officer/CSS, Crime Officer, Administration Officer, Operations Officer, Compliance Officer, Station Commander, Station Pastor).
 - c. Other JCF formations equipped with specialized expertise may be utilized, i.e. Administration Branch, National Police College of Jamaica (NPCJ).

7.3 EIS Committee should:

- 7.3.1 deliberate on matters brought before the committee to determine the outcome; and
- 7.3.2 submit a written report with the findings and recommendations to the respective Commanding Officer.

7.4 Supervisor/Sub-Officer in Charge should:

- 7.4.1 intervene and deal with reports regarding antisocial behaviour or other act of unprofessional conduct of members under their supervision; and
- 7.4.2 monitor the member's performance and general conduct and submit a report to the EIS Committee until the intervention period expires.

8.0 Standard Operating Procedures

The EIS should be enacted immediately when any member conducts themselves in an unethical manner or breaches any rules, regulations, policies, guidelines or procedures of the JCF.

8.1 Process of Intervention

The process of intervention is divided into four (4) stages. These are Identification, Assessment/Diagnosis, Intervention, Monitoring and Evaluation. The process of intervention is the responsibility of the Commanding Officer.

8.1.1 Identification

Identification and assessment of adverse conduct or behaviour by a member, the conduct or behaviour may include:

- a. Any breach of JCF policies, rules or regulations (i.e. Police/Public Interaction Policy, Diversity Policy, Social Media Policy).
- b. Any conduct that is likely to lead to breach of any laws (i.e. Assaults, Use of Excessive Force, Negligence).
- c. Any conduct that is in breach of force policies (i.e. deportment, use of adverse language, poor driving conduct).
- d. Any conduct that exhibits disregard for public rights and dignity (i.e. failure to assist a member of the public promptly, failure to intervene to ensure safety of the public such as clearing an obstruction or contacting support agencies for help promptly).
- e. Any act that requires scrutiny to ensure that they are in keeping with force procedures (arrests, seizures of motor vehicles or private property).
- f. Any use of lethal force such as shootings, and especially where a member is involved in three (3) shootings.
- g. Any conduct by members that appear to be of concern, though may not be of any unlawful actions (i.e. spending large sums of money, dramatic lifestyle changes, association).

- h. Any behaviour or conduct that may indicate personal challenges (i.e. irrational personality, protracted sick leave beyond 28 days without being seriously injured on or off duty, members of the public making complaints about misbehaviour, sexual harassment issues, financial instability).

8.1.2 **Assessment/Diagnosis**

Assessment and Diagnosis of the possible reasons why the member's conduct and behaviour are showing variations from the norm, may result in any of the following:

- a. Lack of understanding or knowledge of rules or guidelines associated with his/her duties, leading to delays in completion of investigations.
- b. Overexposure to adverse situations leads to the frequency of violent contacts.
- c. Instability in the work environment leading to a lack of focus on professional requirements.
- d. Fatigue or burnout leading to stress on the job.
- e. Instability in social and domestic environment leading to stress.
- f. Exposure to traumatic events without appropriate intervention, leading to unstable behaviour.
- g. Inadequate management and supervision leading to mistakes by members.
- h. Inadequate training and sensitization leading to a lack of skill sets to perform duties properly.
- i. Lack of monitoring by managers and supervisors, resulting in the members falling into bad associations.

8.1.3 **Intervention**

Interventions are required to be done in a professional and methodical manner to ensure that the issues affecting the member are dealt with effectively. The aim of the intervention is to ensure that the issue is corrected, there is a significantly reduced chance of the issue recurring or pervading, and members learn from the situations. These interventions include:

- a. Highlighting the issue to the member involved.
- b. Sensitize the member regarding the rules, procedures, guidelines, policy or law that applies to the issue.
- c. Assist the member through coaching, mentoring and sensitization in getting the member to understand how he/she should conform.
- d. Provide/cause the member to receive training to strengthen skill sets where gaps are observed.

- e. Recommend/cause counselling/coaching intervention to be done where the issue is personal and/or other stress related.
- f. Recommend/cause the member to be rotated where diagnosis indicates fatigue or burnout in a specific area.
- g. Recommend/cause the member to be in receipt of leave where it indicates that this should help the member to improve behaviour.
- h. Serve formal reminders to members to guide their understanding and improve their knowledge of their duties with a view of changing and enhancing good conduct.
- i. Assign a personal mentor or coach to the member to help the member overcome shortcomings.
- j. Provide advice on departmental and legal consequences that may arise from failure to adhere to policies, rules, guidelines, procedures and laws.
- k. Strengthen the supervision and monitoring apparatus within the JCF through the development and re-promulgation of policies and guidelines.

8.1.4 **Monitoring and Evaluation**

Monitoring and evaluation of members are required immediately after the intervention is done. These include:

- a. Establish EIS file for each member.
- b. Include within the file the relevant policy, regulation, guideline or law that applies to the issue.
- c. Develop an intervention plan to support the member in dealing with the identified issue.
- d. Assign an officer/senior sub-officer to monitor and evaluate the progress of the member during the EIS process.
- e. Update file on improvement of the member on a weekly basis or on occasions where the issue or other issues comes to the fore.
- f. Submit monthly progress reports of all EIS related interventions activated.
- g. Members performance and general conduct, and report **every two (2) months** to the EIS Committee until the intervention period expires

8.2 **Composition of the EIS Committee**

- 8.2.1 The Divisional EIS Committee should comprise the Administrative Officer, member's immediate supervisor, a peer counsellor or station pastor or chaplain, and the member's representative.

- 8.2.2 The Administrative Officer should chair the EIS Committee at the divisional level where the concerned member is of or below the rank of Inspector. The chair should be elevated to the Area or Branch level where the concerned member is a gazetted officer.
- 8.2.3 The Divisional EIS Committee should deliberate on the matter brought before it to determine the outcome
- 8.2.4 On the completion of the Divisional EIS Committee hearing:
- i. the Committee should submit its written report with its findings and recommendations to the Commanding Officer **within seven (7) days** of the hearing; and
 - ii. The recommendations should include the duration of the intervention and the due date for the final report
- 8.2.5 On the conclusion of the EIS hearing, the following may be the likely outcomes of the EIS:
- i. Re-assignment
 - ii. Transfer
 - iii. Training/retraining
 - iv. Counselling
 - v. Mentoring
 - vi. Coaching
 - vii. Closer Supervision
- 8.2.4** Where based on reports or observation, unprofessional practices appear to be systematic within a Station/Division/Formation, a similar approach should be taken, which may require elevating the EIS Committee from the Divisional level to the Area/Branch Level and in extreme cases, to the IPROB or Portfolio level

8.3 Intervention Implementation

At the implementation stage:

- 8.3.1 The appropriate intervention strategy decided on should be applied.
- 8.3.2 Where recommendations are made by the Divisional EIS Committee, the respective Commanding Officer should ensure that the intervention is applied and appropriately entered into the EIS Register.
- 8.3.3 Commanding Officers should forward a monthly return of all matters dealt with at the EIS Committee to the IPROB in the first week of each succeeding month outlining the following:
- i. the name, rank and number of the members brought before the EIS;
 - ii. nature of alleged infraction; and

- iii. method of intervention recommended and progress on the implementation.

8.4 Intervention Decision/Process

This stage explores intervention options to determine the appropriate intervention strategy. Intervention may be conducted at two levels- Informal and Formal.

8.4.1 Informal Intervention

At the Informal Intervention level, the supervisor concerned should:

- i. make an initial assessment of the *indicators* and or *signs*, and engage the member(s) concerned and decide on an appropriate strategy for the behavior observed
- ii. explore intervention options which may include needs for personal assistance, counselling, training, or other intervention;
- iii. cause the initial assessment and actions taken to be recorded and retained for future reference; and
- iv. where it is determined that the member requires more than an informal hearing, submit a report to the Commanding Officer with the appropriate recommendations.

8.4.2 Formal Intervention

- a. Formal intervention should be engaged on the basis of:
 - i. a written report from a supervisor regarding the conduct of a member, or
 - ii. where a member reaches the threshold of any of the indicators outlined in this document.
- b. Upon receipt of a supervisor's report, the Commanding Officer should make an assessment and decide whether or not the matter should be placed before a formal tribunal such as, Orderly Room, or before the Divisional EIS Committee;

8.5 Submission of EIS Report by Divisions

8.5.1 Monthly returns of EIS should be submitted to IPROB via Area and Branch Officers **by the 5th day of each succeeding month**, outlining the following:

- i. the name, rank and number of the members brought before the EIS;
- ii. nature of alleged infraction; and
- iii. method of intervention recommended and progress on the implementation.

9.0 Legislative Authority/Guiding Principles

This policy and standard operating procedures are in keeping with provisions contained in the Charter of Fundamental Rights and Freedoms (Constitutional Amendment) Act and the following legislations, guiding principles and policies:

- 9.1 United Nations Code of Conduct for Law Enforcement Officials
- 9.2 Universal Declaration of Human Rights
- 9.3 Corruption (Prevention) Act, 2002
- 9.4 Constabulary Force Act
- 9.5 Book of Rules for the Guidance and General Direction of the Jamaica Constabulary Force, 1988
- 9.6 Jamaica Constabulary Force Ethics and Integrity Policy
- 9.7 Jamaica Constabulary Force Code of Conduct for Civilian Staff

10.0 Relevant Records

- 10.1** Station Diary
- 10.2** Defaulters Register
- 10.3** EIS Register